The examination is being carried out on the **following application documents**

Description, Pages

1-48	as published	

Claims, Numbers

1-15	filed in electronic form on	20-08-2020

Drawings, Sheets

1/43-43/43	as published	

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2005/228484 A1 (STEPHENS W P [US] ET AL) 13 October 2005 (2005-10-13)

D3 US 2014/100650 A1 (CHOBOTOV MICHAEL V [US]) 10 April 2014 (2014-04-10)

The following document has been cited in the international search report; the numbering will be adhered to in the rest of the procedure.

D2 US 2013/103135 A1 (TRIVASCULAR, INC.) 25 April 2013 (2013-04-25)

1. Lack of novelty (Article 54 EPC) and inventive step (Article 56 EPC)

The present application does not meet the requirements of Article 52(1) EPC because: the subject-matter of independent claim 1 and dependent claims 2-6, 9, 13-15 is not new within the meaning of Article 54(1) and (2) EPC; the subject matter of dependent claims 7-8, 10-12 does not involve an inventive step within the meaning of Article 56 EPC.

1.1 Independent claim 1

D1 discloses (the references in parenthesis applying to this document) all the technical features of claim 1 (see in part. fig. 2-3a, par. 052):

- An endovascular system (27), comprising:
a main tubular graft body configured to be deployable within a main artery, wherein the main tubular graft body comprises a tubular graft wall;
a plurality of inflatable channels (33) disposed along the main tubular graft body; and
at least one stent segment (34) disposed along the tubular graft wall of the main tubular graft body,
wherein the plurality of inflatable channels are configured to be inflated with an inflation medium, and
wherein one or more of the at least one stent segment are disposed between two or more adjacent inflatable channels of the plurality of inflatable channels (fig. 3a).

For the sake of completeness, it is pointed out that the features of independent claim 1 are also disclosed by one of D2-D3: see D2 in fig. 21 and par. 096; see D3 in fig. 1, 7-9 and par. 050-052.

1.2 Dependent claims

The additional features of dependent claims 2-15 are also disclosed (cl. 2-6, 9, 13-15) at least by one of the documents D1-D3 (see D1 in fig. 1-6 and par. 044-074; see D2 in fig. 1-6, 20-21 and par. 043-045, 096-097; see D3 in fig. 1-10 and par. 050-073) or they do not involve an inventive step in view of D1 (cl. 7-8) or in view of D2 (cl. 10-12), the features not disclosed being minor modification envisaged by the person skilled din the art.

2. Conclusion

It is not at present apparent which part of the application could serve as a basis for a new, allowable independent claim 1 in order to make the invention patentable (Article 52(1) EPC). Should the applicant nevertheless regard some particular matter as patentable, an independent claim 1 should be filed taking account of Rule 43(1) EPC. **The applicant should also indicate how the subject-matter of the new claim differs from the state of the art and the significance thereof.**

3. Further observations

3.1 **Independent claim 1 is not in the two-part form** in accordance with Rule 43 (1) EPC and should therefore be redrafted accordingly. If, however, the applicant is of the opinion that the two-part form would be inappropriate, reasons therefor should be

provided. In addition, the applicant should ensure that it is clear from the description which features of the subject-matter of claim 1 are already known in combination from D1 (GL F-IV, 2.3.2).

3.2 To meet the requirements of Rule 42(1)(b) EPC, **D1 should be identified in the description** and the relevant background art disclosed therein should be briefly discussed.

3.3 All the features of the claims should be provided with **reference signs** placed in parentheses to increase the intelligibility of the claims (Rule 43(7) EPC). This applies to both the preamble and characterising portion (GL F-IV, 4.19).

3.4 The vague statement "spirit and scope of the invention" in the description on § 184 implies that the subject-matter for which protection is sought may be different to that defined by the claims, thereby resulting in a lack of clarity of the claims (Article 84 EPC) when the description is used to interpret the claims (GL F-IV, 4.4). This statement should therefore be amended to remove this inconsistency.

3.5 The expression "incorporated herein by reference" in par. 001 (or equivalent expressions) does not meet the requirements of Rule 42(1)(b) EPC.

3.6 The attention of the applicant is drawn to the fact that the amendments to the application may not relate to: i) subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC); ii) non-searched subject-matter that does not combine with the originally claimed invention or group of inventions to form a single general inventive concept (Rule 137(5) EPC); iii) subject-matter that was excluded from the search following an invitation under Rule 62a(1)/63(1) EPC,

3.7 In order to comply with the requirements of Rule 137(4) EPC, **the applicant should clearly identify the amendments made,** irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (GL H-III, 2.1). If the applicant considers it appropriate, these indications could be submitted in machine written form (hand-written amendments are no longer accepted as pointed out in OJ EPO 2013, 603) on a copy of the relevant parts of the application as filed.

3.8 In order to meet the requirements of Article 84 EPC, **the description should be restricted to the scope of the claims on file and any examples not falling within the scope of the claims should be deleted or be marked** as “for reference/ comparison/illustration only” (see Guidelines F-IV, 4.3; F-II, 7.4 and Rule 48(1)(c) EPC). **At the same time the features of the independent claims on file has to be clearly indicated as essential in the description. Therefore for such essential features expression like "may", "optional", "can" are not allowed because introducing lack of support and of clarity (art. 84 EPC and G.L. F-IV-6.3). A mere statement**

indicating that "The invention is according to claim 1" is not enough: It should be clear in the description which features are covered by the claims and which are not. The applicant should take into consideration that an insufficiently adapted description may be objected to under Article 84 EPC and may result in a summons to oral proceedings.

3.9 Any references to methods for treatment of the human or animal body by surgery or therapy and diagnostic methods practised on the human or animal body (see Art. 53(c) EPC) should be marked as according to the disclosure rather than according to the invention.